

Delaware County Commissioners Meeting August 19th 2024

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=X5qs_xmQ0XM
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1. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer opened the Delaware County Commissioners meeting on Monday, August 19, 2024, at 9:00 a.m. Opening procedures included the Pledge of Allegiance and a roll call.
- **Attendance:**
 - Commissioners Present: Shannon Henry, James King, and Sherron Reagan (presiding).
 - Members Absent: None.

2. Preliminary & Procedural Business

- **Ceremonial Openings:** Opening of the meeting featured the Pledge of Allegiance.
- **Approval of Minutes:**
 - **00:01:27** The commission considered the approval of minutes from the August 5, 2024 meeting, noting minor corrections.
 - **Action & Vote Disposition:** Approved by Roll Call (Henry: Yes, Reagan: Yes, King: Yes).

3. Substantive Business & Board Action

- **00:01:15 Tabled Business**
 - **Sponsor / Presenter:** Board Commissioners.
 - **Deliberation Summary:** Commissioners briefly discussed keeping two previously tabled items tabled.
 - **Action & Vote Disposition:** Kept tabled by consensus.
- **00:01:52 Presentation: Muncie Sanitary District Levy Realignment & Property Abatement Request**
 - **Sponsor / Presenter:** Rick Conrad, District Administrator.
 - **Deliberation Summary:** Rick Conrad outlined the Sanitary District's maintenance of approximately 8 miles of levee systems built by the Army Corps in the 1940s. Because modern flood protection standards require modifications to railroad embankments that the District cannot alter, the District is executing a "South Levy" realignment to protect 600 structures and 1,500 people. This requires acquiring a few properties, including 1725 East Jackson Street (headed for tax sale). The District requested a tax abatement contingent upon acquiring the property. Commissioners noted that coordination with the auditor, treasurer, and Department of Local Government Finance (DLGF) is ongoing.
 - **Action & Vote Disposition:** Informational presentation only; no formal vote taken.
- **00:04:56 Contract/Agreement: Lutter Estate Plat Road Frontage Dedication**
 - **Sponsor / Presenter:** Kathy Ben (Ashton Land Surveyors).
 - **Deliberation Summary:** Request to dedicate road frontage on County Road 600 West for a 2-acre parcel split out of a 33-acre farm. The administrative plat already received plat committee approval.
 - **Action & Vote Disposition:** Approved by Roll Call (Reagan: Yes, Henry: Yes, King: Yes).
- **00:06:01 Contract/Agreement: Voting Site Rental Agreement**
 - **Sponsor / Presenter:** Board Commissioners / Staff.
 - **Deliberation Summary:** Address change for an upcoming election voting site, shifting out of a school to the Munsana Real Estate Group out of Yorktown.
 - **Action & Vote Disposition:** Approved by Roll Call (Reagan: Yes, Henry: Yes, King: Yes).
- **00:07:42 Contract/Agreement: Delaware County Indiana Homestead Contract**
 - **Sponsor / Presenter:** Board Commissioners / Auditor's Office representation.
 - **Deliberation Summary:** Renewal of a state-utilized compliance auditing service that searches for double/triple homestead tax exemptions to generate revenue for the auditor's office.
 - **Action & Vote Disposition:** Approved by Roll Call (Henry: Yes, Reagan: Yes, King: Yes).
- **00:07:56 Contract/Agreement: EMS Billing Services Renewal**
 - **Sponsor / Presenter:** Presented informally by staff/Commissioners (submitted by Mike Asley).

- **Deliberation Summary:** Renewal contract for EMS billing services with rates staying the same.
 - **Action & Vote Disposition:** Approved by Roll Call (Henry: Yes, Reagan: Yes, King: Yes).
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4. Open Public Comment / Citizen Forum

- **00:15:39 Doug Marshall**
 - **Topic:** Opposed the royerton industrial solar panel project on agricultural land. Cited risks to agricultural heritage, property values, and long-term economic growth, warning of potential legal action against the board.
- **00:18:10 Greg Kyle**
 - **Topic:** Spoke in strong opposition to industrial solar projects and criticized the current county solar ordinance for failing to protect homeowners and property values.
- **00:21:17 Stephen Hargrave (on behalf of Arina Thomas / Saer Bass)**
 - **Topic:** Addressed a dangerous, dilapidated structure at 1311/1315 East Main Street. Expressed support for its demolition by the county and requested that the adjacent property be awarded to resident Arina Thomas for gardening and beautification, raising concerns regarding rumors of a tiny home development on the lot.
- **00:27:14 Ron Crouch**
 - **Topic:** Expressed fierce opposition to the proposed solar projects after recently moving into a home in the county. Demanded that the board issue an immediate moratorium on solar projects to reevaluate property value impacts.
- **00:31:24 Melinda Crouch**
 - **Topic:** Spoke about moving to Delaware County from Grant County to escape solar projects, only to discover her property would be surrounded by an industrial solar plant. Requested a 60-day moratorium to review real estate studies regarding solar impact on property values and cited constitutional property rights/takings issues.
- **00:35:14 Steven Hines**
 - **Topic:** Shared that he is a local factory worker who recently cleared his building pad in the country, only to receive a notice that his property would be completely surrounded by solar panels. Urged the board to deny the solar project proposal.
- **00:37:13 Charles Beal**
 - **Topic:** Representing Farmington Meadows Association, inquired about the status of the right-of-way south of the Marr property and discussed publication requirements for upcoming public hearings involving adjacent property owners.
- **00:40:34 Mike Johnson**
 - **Topic:** Expressed total opposition to the proposed solar project, drawing parallels to failed past alternative energy economic initiatives and describing industrial solar installations as future blight on prime agricultural land.

- **00:43:53 Saer Bass**
 - **Topic:** Spoke further regarding the property at 1311/1315 East Main Street, reiterating the desire for her mother (Arina Thomas) to acquire the cleared lot for a vegetable garden and expressing safety concerns regarding potential tiny home plans.
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5. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - **00:08:46** Kyle James (Deputy Director of Delaware County 911) announced that Delaware County 911 Director Fred Cummings was elected by his peers to the APCO International Board of Directors, representing the 13-state North Central region.
 - **00:10:57** Judge Doug Mayer (Circuit Court No. 3) raised concerns from judges regarding construction access and traffic blockages around the Justice Center caused by the new treatment center construction, noting that initial bus pickup/drop-off hindrances had been temporarily addressed.
 - **Adjournment:**
 - **00:48:29 Action & Disposition:** Motion to adjourn approved by Roll Call (Reagan: Yes, Henry: Yes, King: Yes). Time of adjournment not explicitly stated.
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